

IV.4. SPECIFIC PROVISIONS RELATING TO THE PURCHASE, RENTAL AND LEASING OF *HARDWARE PRODUCTS*

IV.4.1 Configuration and delivery

IV.4.1.1 Configuration

In respect of each order

- (1) the other than *Complex hardware products* shall be specified in the specific contract and its Annexes;
- (2) installation of other than *Complex hardware products*, including *Software*, shall be carried out in accordance with the specifications annexed to the specific contract or the relevant *Service level agreement*.

IV.4.1.2. Delivery

The *Delivery date* shall be set at maximum thirty (30) calendar days from the date of signature of the specific contract, unless a different term has been specified in the Special Conditions of the framework contract or in the specific contract.

If the *Delivery date* is overrun by more than twenty-one (21) calendar days, the contracting authority shall be entitled to terminate the specific contract in question.

A failure regarding the *Delivery date* is considered as damage to the contracting authority as defined in Article I.5 of the General Conditions.

The place of delivery shall be specified in each specific contract. There may be more than one place of delivery in a specific contract.

At the time of delivery, the incoming *Products* may be subject to quantitative and qualitative checks by the contracting authority within five (5) working days. The receipt of each delivery of *Products* shall be then recorded in a *Consignment note* signed by the contracting authority. Such *Consignment note* will be established as stated in Article I.1 of the General Conditions.

If no *Certificate of Conformity* has been issued at the end of the one month acceptance period stated in Article I.1 of the General Conditions and if no notification of faulty operation is pending, the contracting authority is considered as having accepted the other than *Complex hardware product*. Unless expressly requested by the contracting authority, partial delivery of an item of a specific contract is not allowed.

IV.4.2. Guarantee specifications for other than *Complex hardware products*

The contractor shall guarantee all goods delivered in accordance with Article I.1 of the General Conditions.

When, under the terms of a specific contract, other than *Complex hardware products* are delivered on several dates, the guarantee period shall for all the components of the other than *Complex hardware products* expire with the end of the guarantee period of the final component of the other than *Complex hardware product* delivered in accordance with the specific contract.

During the two year guarantee period stated in Article I.1 of the General Conditions, the contractor shall provide maintenance at its own and sole expense.